

HOUSE No. 2509

The Commonwealth of Massachusetts

PRESENTED BY:

Edward R. Philips

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the availability of prescription medication during an emergency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 2509

By Representative Philips of Sharon, a petition (accompanied by bill, House, No. 2509) of Edward R. Philips relative to the availability of prescription medication during an emergency. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2249 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the availability of prescription medication during an emergency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following section:-

3 Section 245. (a) The department shall, in consultation with the board of registration in
4 pharmacy, the division of insurance, the office of Medicaid and the Massachusetts emergency
5 management agency, develop and publicize a statewide plan for ensuring the availability of
6 prescription medications during a state of emergency declared by the governor. The plan shall, at
7 a minimum:

8 (1) allow for early refills of prescriptions, if the current amount that a patient possesses is
9 not expected to last beyond 10 days of the date of the declaration of emergency; provided,
10 however, that a pharmacist shall confirm such prescription with the prescriber before each refill;

11 (2) ensure that vehicles delivering medications to pharmacies and hospitals shall be given
12 the same road access available to other emergency vehicles;

13 (3) coordinate among pharmaceutical manufacturers, wholesalers, distributors,
14 pharmacists and other industry stakeholders;

15 (4) avoid duplicative or redundant supply chain infrastructure; and

16 (5) create a safety net system, including a toll-free telephone number and a website for
17 persons to contact during the emergency for assistance in locating prescription medication, in the
18 event no medications are available to them locally.

19 (b) If the governor declares a state of emergency pursuant to section 2A, chapter 639 of
20 the acts of 1950, or any other applicable law, the commissioner shall implement the statewide
21 plan for ensuring the availability of prescription medications for the duration of the state of
22 emergency.